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Case Number: 25STCV20101 Hearing Date: August 10, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/10/2026

CASE NUMBER: 25STCV20101

CASE NAME: DAVID PINNEGAR vs FCA US LLC, et al.

MOVING PARTY: Defendants FCA US LLC and
Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad

OPPOSING PARTY: Plaintiff David Pinnegar

PROCEEDING: Demurrer, Motion to Strike

RULING SUMMARY: Defendants FCA US, LLC and Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad's Demurrer is overruled
as to the Sixth Cause of Action (Fraudulent Inducement Concealment against
Defendant FCA US, LLC), and sustained with leave to amend as to the Fifth Cause
of Action (Negligent Repair against Defendant Autonation Chrysler Dodge Jeep
Ram and Fiat Carlsbad).

Defendants FCA US, LLC and Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad's Motion to Strike the
prayer for punitive damages is granted as to the First through Fifth Causes of
Action and denied as to the Sixth Cause of Action.

Plaintiff is granted 10 days' leave to amend. The amended pleading must clarify that
punitive damages are prayed for with regard to the Sixth Cause of Action

only. The Court continues the Case Management Conference to ____________, 2026, and sets an Order to Show Cause re Filing of Amended Complaint for the same date and time.

BackgrounD

On June 30, 2025, plaintiff David Pinnegar (“Plaintiff”) filed his Complaint against defendants FCA US, LLC (“FCA”) and Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad (“Autonation” and with FCA “Defendants”).

The First Amended Complaint (“FAC”), filed on March 04, 2026, alleges six causes of action for (1) Violation of Subdivision (d) of Civ. Code § 1793.2 against FCA; (2) Violation of Subdivision (b) of Civ. Code § 1793.2 against FCA; (3) Violation of Subdivision (a)(3) of Civ. Code § `1793.2 against FCA; (4) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) against FCA; (5) Negligent Repair against Autonation; and (6) Fraudulent Inducement Concealment against FCA.

Plaintiff alleges that on or about March 2, 2020, Plaintiff entered into a warranty contract with FCA regarding a 2019 Ram 1500 with vehicle identification number 1C6RREHTXKN579570 (the “Subject Vehicle”), manufactured and/or distributed by FCA; the warranty contract included various warranties; defects and nonconformities with the warranty manifested themselves within the applicable express warranty period, including but not limited to an engine defect; FCA had a duty to promptly offer to repurchase or replace the Subject Vehicle at the time it failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts; and FCA did not do so. Plaintiff alleges that Autonation negligently repaired the Subject Vehicle.

On May 4, 2026, Defendants filed this Demurrer with Motion to Strike. The documents filed with regard to the Demurrer and Motion to Strike were (1) two Motions to Strike with concurrently filed documents; and (2) one a memorandum of points and authorities and declaration supporting the Demurrer, but no notice of Demurrer and Demurrer filed. The two Motions to Strike appear to be duplicative.

On June 18, 2026, Plaintiff filed his Oppositions. Plaintiff has opposed the Demurrer on its merits, constituting a waiver of any defect of irregularities in the notice of the demurrer. (Tate v. Superior Court (1975) 45 Cal.App.3d 925, 930 [“It is well settled that opposition on the merits ‘is a waiver of any defects or irregularities in the notice of the motion. [Citations.] This rule applies even when no notice was given at all’ ”]; Carlton v. Quint (2000) 77 Cal.App.4th 690, 697.)

On June 25, 2026, Defendants filed their Replies.

meet and confer

Before filing a demurrer or motion to strike, the moving party is required to meet and confer with the party who filed the pleading demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. §§ 430.41, 435.5.) The meet and confer requirement¿has¿been met. (Decl. of Armando Lopez for both Demurrer and Mtn. to Strike ¶¶ 2-4.)

LEGAL STANDARD

A. Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)¿“To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.”¿(C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)¿For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded.¿ (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.)¿A demurrer “does not admit contentions, deductions or conclusions of fact or law.”¿(Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)¿¿¿

B. Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436(a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)¿¿¿¿¿

C.
Leave to Amend

"Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) "A trial court does not abuse its discretion when it sustains a demurrer without¿leave to amend¿if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim." (Cantu v. Resolution Trust Corp.¿(1992)¿4 Cal.App.4th 857, 889.)¿¿ The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)¿

DISCUSSION

A.
Demurrer

1.
Less Specificity Is Required When¿the
Facts Sought Are More Within the FCA's Knowledge Than¿the¿Plaintiff.

FCA asserts that the Sixth Cause of Action (Fraudulent Inducement Concealment) fails because the fraud claim is not pled with the requisite specificity. Plaintiff asserts, generally, that the acts alleged in this case contain all the elements and exceed the specificity requirements set out in Dhital v. Nissan N. Am., Inc. (2022) 84 Cal.App.5th 828 (“Dhital”).

Unlike fraud claims based on active misrepresentations, fraud claims based on concealment require less specificity¿when the facts¿sought¿are known by the defendant but not the plaintiff. (See¿Alfaro v. Community Housing Improvement System & Planning Assn., Inc.¿(2009) 171 Cal.App.4th 1356, 1384.)¿Less particularity is¿required¿when¿it appears that a defendant¿has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.” (Okun v. Superior Court¿(1981) 29 Cal.3d 442, 458; see also¿Doe v. City of Los Angeles¿(2007) 42 Cal.4th 531, 550 [“Moreover, ‘[p]laintiff¿may allege on information and belief any matters that are not within his personal¿knowledge, if he has information leading him to believe that the allegations are true.”].) “The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff.”¿(Ludgate Ins. Co. v. Lockheed Martin Corp.¿(2000) 82 Cal.App.4th 592, 608.)¿¿

The FAC alleges that FCA concealed and failed to disclose “the defective nature of the vehicle and its Engine Defect to its sales representatives and Plaintiff at the time of sale and thereafter.” (FAC at ¶ 31; see also ¶¶ 29, 78-80.) The names of FCA’s agent or agents who had a duty to disclose the existence of the Engine Defect and instead chose to remain silent are facts within FCA’s knowledge and are discoverable to Plaintiff only through civil discovery.

The Complaint also sufficiently alleges actual and justifiable reliance. “The facts concealed or not disclosed by FCA to Plaintiff are material in that a reasonable person would have considered them to be important in deciding whether or not to purchase the Vehicle. Had Plaintiff known that the Vehicle and its Engine were defective at the time of sale, Plaintiff would not have purchased the Vehicle.” (Id. at ¶ 80; see also ¶¶ 32, 35, 81.) “Plaintiff was unknowingly exposed to the risk of liability, accident and injury as a result of Defendant's fraudulent concealment of the Engine Defect.” (Id. ¶ 82; see also ¶ 35.)

Therefore, the Court finds that the fraud claim is pled
with the requisite specificity.

2. A
Manufacturer Can Have a Transactional Relationship with a Purchaser Sufficient
to Give Rise to a Duty to Disclose.

FCA asserts it owed no duty to¿disclose¿the Engine
Defect to Plaintiff because there was no transactional relationship between
Plaintiff and Defendant.¿

In¿Dhital, 84 Cal.App.5th at 844, the¿Court found
that the plaintiffs had adequately pled a transactional relationship sufficient
to impose a¿duty¿on Nissan as the manufacturer to¿disclose¿defects about the
defective transmission, as follows:¿¿¿¿¿¿¿

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At the
pleading stage (and in the absence of a more developed argument by Nissan on
this point), we conclude plaintiffs' allegations are sufficient.
Plaintiffs alleged that they bought the car from a Nissan dealership, that
Nissan backed the car with an express warranty, and that Nissan's authorized
dealerships are its agents for purposes of the sale of Nissan vehicles to
consumers.¿In light of¿these¿allegations, we decline to hold plaintiffs' claim
is barred on the ground there was no relationship requiring Nissan
to¿disclose¿known defects.¿¿¿¿¿¿

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Dhital, at one point,¿was in question¿by Supreme
Court¿and review was granted. The review was¿subsequently¿dismissed on December
18, 2024, effectively affirming the holding of¿Dhital¿for present
purposes.¿

On review from a motion for summary judgment, the Ninth
Circuit in¿Daniel v. Ford Motor Co.¿(9th Cir. 2015) 806 F.3d 1217 ("Daniel")
similarly found that Ford, as a vehicle manufacturer, had a¿transactional
relationship with its customers who¿purchase¿their vehicles:¿¿¿¿¿¿¿¿¿

¿¿¿¿¿¿¿¿

Plaintiffs
do have evidence that Ford communicates indirectly through its authorized dealerships. Plaintiffs received information about the “characteristics,” “benefits,” and “quality,” Cal.¿Civ. Code¿§ 1770(a)(5), (7), of the Ford Focus from Ford's dealerships, which is also where they could obtain certain brochures and¿booklets about Ford's vehicles. Under the terms of Ford's express warranty, Plaintiffs needed to return to Ford dealerships to perform warranty repairs. And it is through its dealership network that Ford circulated its special service messages and technical service bulletins when issues arose with the Focus. Based on this¿evidence, a reasonable fact finder could conclude that Ford knew that its consumers depended at least in part on its authorized dealerships for information about its vehicles and that Ford's authorized dealerships would have¿disclosed¿the alleged rear suspension defect to consumers if Ford had¿required¿it.¿¿¿¿¿¿¿¿¿

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(Id. at p. 1227.)¿¿¿¿¿¿¿

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Similarly,¿in¿Bader v. Johnson & Johnson¿(2022)
86 Cal.App.5th 1094, the¿Court found that the jury instruction imposing liability on the manufacturer was proper because “[t]here was also evidence showing that J&J was involved in retail sales of JBP to consumers and profited therefrom.” (Id. at p. 1132.) “A proper instruction under¿Bigler-Engler¿thus would have instructed the jury here to consider whether similar evidence of¿transactions, advertising, or J&J's¿direct monetary benefit supported the¿transactional requirement.” (Ibid.) “On this record, J&J cannot show it is reasonably probable the jury would have found for J&J had it been instructed under¿Bigler-Engler¿that it had to find a¿transaction between J&J and Schmitz or her parents.” (Ibid.)¿¿¿

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Here, the¿FAC¿alleges that FCA manufactured and/or disturbed the Subject Vehicle. (Complaint¿¶ 7.) “At all times relevant herein, FCA was engaged in the business of designing, manufacturing, constructing, assembling, marketing, distributing, and selling automobiles and other motor vehicles and motor vehicle components[.]” (Id. ¶ 4.) FCA’s marketing materials concerning the Subject Vehicle is what induced Plaintiff to¿purchase¿the Subject Vehicle. (Id. ¶¶ 12-13, 32, 81.) Defendant committed fraud by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle equipped with the¿5.7L defective engine (Id. ¶ 29, 31, 78-80.) “. . .FCA acquired its knowledge of the Engine Defect prior to Plaintiff acquiring the Vehicle through sources not available to consumers, including but not limited to pre-production and post-production testing data, early consumer complaints about the Engine Defects made directly to FCA and its network of dealers, testing conducted by FCA in response to these complaints, as well as warranty repair and part replacements data received by FCA from FCA's network of dealers, amongst other sources of internal information.” (Id. ¶¿30; see also ¶¶ 34, 78.)¿¿¿ ¿¿

Dhital,¿Daniel,¿and¿Bader¿support the proposition that a vehicle manufacturer can have a transactional relationship with its vehicle purchasers sufficient to give rise to the¿duty¿to¿disclose. Moreover, the¿facts are sufficient to show that FCA was involved in the marketing and sale of the Subject Vehicle sufficient to support the existence of a transactional relationship between FCA and Plaintiff. Moreover, the above allegations relate to FCA’s pre-sale conduct that preceded the warranty contract.¿¿¿

Accordingly, Defendants’ Demurrer to the Sixth Cause of Action (Fraudulent Concealment) is OVERRULED.

3. AutoNation’s Demurrer to the Fifth Cause of Action (Negligent Repair) is sustained because the allegations are conclusory.

¿“The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (Ladd v. County of San Mateo¿(1996) 12 Cal.4th 913, 917 [internal quotations omitted].) The existence of a legal duty is a question of law for the court to decide. (Adams v. City of Fremont¿(1998) 68 Cal.App.4th 243, 265.) “However, the elements of breach of that duty and causation are ordinarily questions of fact for the jury's determination.” (Vasquez

v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278.) “One who undertakes repairs has a duty arising in tort to do them without negligence.” (Southwest Forest Industries, Inc. v. Westinghouse Elec. Corp.¿(9th Cir. 1970) 422 F.2d 1013, 1020.)¿¿¿

The Fifth Cause of Action alleges that Autonation “owed a duty to Plaintiff to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle in accordance with industry standards” and breached that duty “by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (FAC ¶¶¿72, 73.)¿

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Autonation demurs to the Fifth¿Cause of Action on the basis that the claim is barred by the economic loss rule because Plaintiff¿fails to¿allege the existence of a duty that is completely independent of the warranty contract and Plaintiff has not alleged¿the critical element of damages needed to sustain the negligent repair claim. The economic loss rule requires that the plaintiff recover in contract for purely economic loss due to disappointed contractual¿expectations, unless¿the plaintiff can demonstrate harm above and beyond a broken contractual promise. (Robinson Helicopter Co. v. Dana Corp. (2004) 34 Cal.4th 979, 988.) An “economic loss” consists of damages for inadequate value, costs of repair, and replacement, or consequent loss of profits, without any claim of personal injury or damages to other property. (Id. at p. at 988.) “Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. Such claims are barred when they arise from — or are not independent of — the parties’ underlying contracts.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923.)¿¿

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Plaintiff fail to allege facts giving rise to AutoNation’s extracontractual duty to repair the Subject Vehicle with due care.¿ He also fails to¿allege facts as to what damages Plaintiff sustained due to AutoNation’s failure to “properly store, prepare and repair the Subject Vehicle” and how San Diego

Chrysler's storage, preparation, and repair work deviated from "industry standards." (FAC ¶ 73.)

As the allegations in the Fifth Cause of Action are conclusory, Defendants' Demurrer to the Fifth Cause of Action is SUSTAINED with leave to amend.

B.
Motion to Strike

Defendants seek to strike punitive damages, Prayer for Relief, page 13, section e, line 16, from the FAC.

Defendants argue that Plaintiff has not pled sufficient facts to support allegations of oppression, fraud, or malice as required under Civil Code section 3294. According to Defendants, no individual is identified, nor is any advertisement or publication authored by FCA identified. In addition, Plaintiff fails to allege that Autonation somehow had advance knowledge of the purported unfitness of the employees that serviced the Vehicle or that it employed them with a conscious disregard of Plaintiff's rights were aware of and implemented a companywide scheme to conceal any vehicle defect.

Plaintiff contends that FCA's fraud is alleged, and the facts show that FCA acted with conscious disregard for the safety of others. Plaintiff provides no argument regarding punitive damages with regard to the Fifth Cause of Action (Negligent Repair).

Defendants, in reply, argue that punitive damages are not available under Song-Beverly and Plaintiffs' prayer for punitive damages only survives with the fraudulent concealment claim survives.

Plaintiff has not opposed the Motion to Strike as to the Fifth Cause of Action (Negligent Repair). The Opposition makes clear that FCA's fraud is related to non-disclosure of the alleged engine defect (see Opp. 3:21-4:6), and FCA's conscious disregard for the safety of others is shown by the safety risk posed by the engine defect (see id. at 4:7-5:19.) The Court construes the lack of opposition to the Fifth Cause of Action (Negligent Repair) as to Autonation as a concession on the merits. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60

Cal.2d 723, 728 at fn. 4 [where nonmoving party fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground].)

Regarding whether
Plaintiff may recover both punitive damages and Song-Beverly Act penalties against FCA, the Court in Anderson v. Ford Motor Co. (2022) 74 Cal.App.5th 946, 970-73 (“Anderson”), held that, where a complaint alleges the Song-Beverly penalties are based on conduct different from the conduct on which punitive damages are sought, both are recoverable against a defendant:

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We have
already rejected Ford's assertion that the underlying conduct need only be “substantially” the same to prohibit the recovery of both punitive damages and civil penalties; rather, the recovery of both punitive damages and civil penalties is prohibited when the underlying conduct for both remedies is the same conduct, i.e., identical conduct. And as we have said, the punitive damages award based on fraud and violation of the CLRA were based on Ford's presale fraudulent conduct leading up to and culminating in the sale, where Ford concealed problems relating to the defective 6.0 liter Navistar diesel engine. The Song-Beverly Act civil penalty related to Ford's willful postsale conduct in failing to promptly replace the truck after a reasonable number of repair attempts or make restitution to plaintiffs.¿¿¿

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[. . .]¿¿¿

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Ford
appears to assert that plaintiff effectively combined the conduct underlying the fraud/CRLA cause of action and the Song-Beverly Act cause of action by arguing Ford engaged in a pattern and practice of misconduct and thus the two awards were based on substantially the same conduct. But plaintiffs are not prohibited from receiving both an award for punitive damages based on presale fraudulent inducement and a postsale Song-Beverly Act penalty based on willful noncompliance because they argued pattern and practice in the trial

court. “A pattern or practice of wrongful conduct is often introduced as evidence of malice or oppression to justify a punitive damage award.” (George F. Hillenbrand, Inc. v. Insurance Co. of North America (2002) 104 Cal.App.4th 784, 820–821 [128 Cal. Rptr. 2d 586].) Thus, whether Ford's conduct involved a pattern and practice of misconduct as well¿
as other factors, such as how reprehensible Ford's conduct was and whether Ford disregarded the safety of others were all express considerations for the jury to weigh in deciding the amount of punitive damages. (CACI No. 3942.) And the amount of punitive damages is not limited to consideration of a pattern and practice of misconduct presale. The jury could consider a pattern or practice that continued beyond the date of the sale.¿¿¿

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Moreover,
whether Ford engaged in an ongoing pattern or practice of misconduct pertinent to the amount of punitive damages award does not become an impermissible consideration by virtue of the fact that plaintiffs were also separately alleging, and attempting to establish, that Ford willfully failed to comply with the requirements of the Song-Beverly Act. Nor does the proper consideration of whether Ford engaged in such a pattern or practice, including pre- and postsale conduct, lead to the conclusion that the fraud/CLRA claims and the Song-Beverly Act claim were based on the same conduct. Plaintiffs did not argue to the jury that the failure to comply with the Song-Beverly Act obligations to replace the vehicle or make restitution supported the punitive damages award. In fact, in phase 2, plaintiffs' attorney briefly discussed the Song-Beverly Act, noting, “[y]ou can be an honest manufacturer and still have Song-Beverly issues, a customer came in multiple times, there were defects, you didn't fix them.” Counsel then stated that the Song-Beverly Act and its civil penalties were “totally separate.”¿¿¿

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[. . .]

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We conclude

that punitive damages and the Song-Beverly Act civil penalty were both properly awarded to plaintiffs.¿¿¿

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(Id.)¿¿¿

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Here, as in Anderson, the Song-Beverly claims are related to FCA's ability to replace the Subject Vehicle or make restitution in accordance with the Song-Beverly Act while the Sixth Cause of Action (Fraudulent Inducement Concealment) is based on pre-sale actions of fraudulent concealment which ultimately led to the purchase of the Subject Vehicle.
Therefore, the claim for punitive damages only survives with the fraudulent concealment claim. The Court discussed the survival of the fraudulent concealment claim above.

Accordingly, the Motion to Strike the prayer for punitive damages is granted as to the First through Fifth Causes of Action and denied as to the Sixth Cause of Action.

Conclusion¿

Defendants FCA US, LLC and Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad's Demurrer is overruled as to the Sixth Cause of Action (Fraudulent Inducement Concealment against Defendant FCA US, LLC), and sustained with leave to amend as to the Fifth Cause of Action (Negligent Repair against Defendant Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad).

Defendants FCA US, LLC and Autonation Chrysler Dodge Jeep Ram and Fiat Carlsbad's Motion to Strike the prayer for punitive damages is granted as to the First through Fifth Causes of Action and denied as to the Sixth Cause of Action.

Plaintiff is granted 10 days' leave to amend. The amended pleading must clarify that punitive damages are prayed for with regard to the Sixth Cause of Action only. The Court continues the Case
Management Conference to ____________, 2026, and sets an Order to Show Cause re Filing of Amended Complaint for the same date and time.

Date: _____________ _________________________________¿

William

E. Weinberger

Judge, Los Angeles Superior Court